

26NWCV00146 26NWCV00146

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-09-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CL%2C09%2F10%2F2026

Source SHA-256: 64973b4d8a70f62882ea40dfaaef5a6dee1d820bb59afab6d766f9b864be180e

Case Number: 26NWCV00146 Hearing Date: September 10, 2026 Dept: L

TERRY WILLIAMS vs LOS ANGELES METROPLITAN
TRANSPORTATION AUTHORITY

CASE NO.: 26NWCV00146

HEARING: September 10, 2026 @ 9:30
a.m.

#17

REVISED TENTATIVE
ORDER

Defendant Los Angeles

Metropolitan Transportation Authority's Demurrer to the Complaint is SUSTAINED without leave to amend as to the second, third, fourth, fifth, and sixth causes of action.

Defendant's Motion to Strike
is GRANTED, in part, and MOOT, in part.

Defendant to give notice.

Background

This is an action for motor vehicle negligence. On January 13, 2026, Plaintiff Terry Williams ("Plaintiff") filed this action against Defendant Los Angeles Metropolitan Transportation

Authority ("Defendant") and Does 1 to 10. The gravamen of the Complaint is as follows: "On April 17, 2025, at approximately 12:27PM, Plaintiff was waiting at the bus stop located at 12901 Hoxie Ave., Los Angeles, California. Upon the arrival of the bus, Plaintiff attempted board the bus by flagging it down to get the driver's attention so that the driver could open the door. Plaintiff believed they would let him on. DEFENDANTS, and each of them, so negligently and with conscious disregard for the safety of others, operated, drove, maintained, controlled, and entrusted DEFENDANTS' vehicle, so as to cause DEFENDANTS' vehicle to collide with and strike PLAINTIFF'S person, causing the injuries and damages alleged herein." (Compl., ¶ 7.)

The Complaint alleges the following causes of action: 1) Motor Vehicle Negligence, 2) Negligence Per Se (Vehicle Code § 22350), 3) Negligence Per Se (Vehicle Code § 20001), 4) Negligent Entrustment (Vehicle Code § 17150) 5), Negligence Per Se (Vehicle Code § 23103), 6) Negligent Hiring, Supervision, and Retention, and 7) Common Carrier Negligence.

Defendant now demurs to the second, third, fourth, fifth, and sixth causes of action in the Complaint. Defendant also moves to strike portions of the Complaint.

On August 26, 2026, Plaintiff filed an opposition to the Motion to Strike.

On September 2, 2026, Defendant filed a Reply to Non-Opposition to Demurrer, asserting that Plaintiff failed to oppose the Demurrer.

As a procedural matter, the Court notes that there is no opposition to the Demurrer in the case file. On September 4, 2026, Defendant filed a Response to Plaintiff's Request to Continue Hearing and for Order Directing Service of Demurrer ("Response"). In the Response, Defendant asserts that Plaintiff filed the Declaration of Rob A. Rodriguez on September 4, 2026 ("Rodriguez Declaration"). According to Defendant, the Rodriguez Declaration asserts that Plaintiff's counsel was not served with the Demurrer and requests that it be denied or continued. The Response argues that the Demurrer was properly served via electronic service and that Plaintiff's counsel "retrieved the served documents on May 3, 2026 at 11:49 a.m." (Response, 2:6-8; Kohrs Response Decl., ¶¶ 2-5, Exh. A.)

The Court notes that the purported Rodriguez Declaration does not appear

in the case file. The Court thus treats the Demurrer as unopposed.

Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (“Donabedian”) (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) and section 435.5 require that the parties meet and confer “in person, by telephone, or by video conference.”

The parties met and conferred via telephone on multiple occasions regarding the issues in the Demurrer and Motion to Strike (Kohrs Decls., ¶ 3.) Defense counsel understood that Plaintiff would file an amended Complaint, but Plaintiff failed to do so by the deadline for Defendant to file a responsive pleading. (Ibid.) The Court finds that the meet and confer requirement has been met.

Discussion

Fourth Cause of Action – Negligent Entrustment

Defendant argues that public entities cannot be held liable for a common law tort. Defendant concedes that the first cause of action for motor vehicle negligence is proper on a vicarious liability theory under Government Code section 815.2. However, the fourth cause of action is not based on any statute, and thus, Defendant cannot be held liable.

California Government Code

section 815 provides that “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person” except as provided by statute. (Govt. Code § 815, subd. (a); see also *Hoff v. Vacaville Unified School Dist.* (1998) 19 Cal.4th 925, 932.) “[D]irect tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714.” (*Munoz v. City of Union City* (2004) 120 Cal.App.4th 1077, 1112, disapproved of on other grounds by *Hayes v. County of San Diego* (2013) 57 Cal.4th 622.)

The Court finds that

negligent entrustment is a common law tort, and the Complaint has failed to allege any statutory authority to serve as the basis for such claim against Defendant. (See *Agustin v. Golden Empire Transit Dist.* (2025) 116 Cal.App.5th 426, 442 [declining to address a negligent entrustment theory on a motion for summary judgment on its merits because “negligent entrustment is a common law liability doctrine [Citation], and the [complaint] cite[d] no statutory authority for pursuing this theory against [public entity defendant]”].)

Accordingly, the Demurrer to

the fourth cause of action is SUSTAINED without leave to amend.

Sixth Cause of Action – Negligent Hiring, Supervision, and Retention

Similar to the fourth cause of action, Defendant argues that it cannot be held liable for the sixth cause of action, which is a common law tort.

The Court finds that negligent hiring, supervision, and retention is a common law tort, and the Complaint fails to allege any statutory authority to

serve as the basis for such claim against Defendant. (See *de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 255–256 [“[A] direct claim against a governmental entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injured party, may not be maintained.”].)

To the extent that Plaintiff seeks allege such a claim based on a vicarious liability theory (i.e., that Defendant’s employees were negligence in hiring, supervising, and retaining the bus driver), courts have entertained such theory in limited circumstances. For example, in *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, the Supreme Court only upheld a negligent hiring and supervision claim against a school district based on vicarious liability where the school administrators owed a special duty to students. (Id. at pp. 868–869 [finding that “[a]bsent such a special relationship, there can be no individual liability to third parties for negligent hiring, retention or supervision of a fellow employee, and hence no vicarious liability under section 815.2.”].)

Accordingly, the
Demurrer to the sixth cause of action is SUSTAINED without leave to amend.

Second, Third, and Fifth Causes of Action

Defendant argues that the second, third, and fifth causes of action for negligence per se under various Vehicle Code provisions are duplicative of the first cause of action. Defendant argues that negligence per se is not a separate cause of action but rather is an evidentiary presumption affecting the standard of care applied. Further, the Vehicle Code provisions impose no mandatory duty on Defendant as an employer public entity.

“The negligence per se doctrine, as codified in Evidence Code section 669, creates a presumption of negligence if four elements are established: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence of the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was

adopted.” (Spates v. Dameron Hospital Association (2003) 114 Cal.App.4th 208, 218, quotation marks omitted.) “

The doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.” (Johnson v. Honeywell International Inc. (2009) 179 Cal.App.4th 549, 555, quotation marks and brackets omitted.)

The Court agrees that the causes of action for negligence per se are duplicative of the first cause of action against all Defendants. Such claims essentially seek to establish a presumption of negligence based on Defendant’s employee’s violation of various Vehicle Code provisions. The Court thus sustains the second, third, and fifth causes of action on grounds that they can be subsumed into the first cause of action. (See Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290 [finding a demurrer can be sustained where one cause of action is duplicative of another cause of action]; see also Rodrigues v. Campbell Industries (1978) 87 Cal.App.3d 494, 501 [finding cause of action is duplicative of another when it “adds nothing to the complaint by way of fact or theory of recovery”].)

Accordingly, the Demurrer to the second, third, and fifth causes of action are SUSTAINED without leave to amend.

Motion to Strike

Code of Civil Procedure, section 436 permits trial courts to strike out any irrelevant, false, or improper matter inserted in a pleading:

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of

this state, a court rule, or an order of the court.”

(Code Civ. Proc., § 436.)

Defendant moves to strike the
following portions of the Complaint (“Portion Nos.”):

1. ¶

3 of the prayer [“For punitive damages, as allowed by law]

2. The

portion of ¶ 6 [“malice or reckless indifference to PLAINTIFFS' safety within
the meaning of Cal. Civ. Code §3294, entitling PLAINTIFFS to an award of
punitive damages.”]

3. The

portion of ¶ 28 “malice or reckless indifference to PLAINTIFFS' safety within
the meaning of Cal. Civ. Code §3294, entitling PLAINTIFFS to an award of
punitive damages.”]

4. The

portion of ¶ 32 [“malice or reckless indifference to PLAINTIFFS' safety within
the meaning of Cal. Civ. Code §3294, entitling PLAINTIFFS to an award of
punitive damages.”]

5. ¶

65 in its entirety [“Defendant LA METRO's acted with oppression, fraud, and
malice, and in conscious disregard of Plaintiff's rights and safety, by
operating its bus in a reckless and negligent manner at a designated bus stop
and then fleeing the scene, thereby justifying an award of punitive damages
against Defendant LA METRO.”]

Defendant argues that public
entities are not liable for punitive damages under Government Code section 818.
Further, the Complaint fails to specifically allege how Defendant acted with
malice, oppression, or fraud.

In opposition, Plaintiff concedes
that punitive damages are barred against public entities. However, government
employees acting in their scope of their employment may be exposed to punitive

damages. Plaintiff asserts that the Motion should be denied as to the employee driver, Defendant Doe 1, now named Xavier Torres. Defendant Torres acted with malice and oppression when he “[saw] Plaintiff in the roadway, and was required to yield, but instead continued to drive, without braking, and struck the Plaintiff. Dangerously driving a large bus, with advance knowledge that any impact could cause serious harm to the health and safety of the pedestrian but also disregarding the Vehicle Code which required him to yield, and then refusing to do so [...].” (Opp., 1:5-9.)

The Court notes that, the day after the opposition was filed, Plaintiff filed an Amendment to the Complaint, naming Defendant Doe 1 as Xavier Torres.

In reply, Defendant argues that Plaintiff has conceded that punitive damages are barred against public entities under Government Code section 818. Thus, punitive damages allegations against Defendant only (Compl., ¶¶ 3, 65) must be stricken. To the extent that the Complaint is based on Defendant’s vicarious liability as an employer for the actions of the employee driver, punitive damages are unavailable unless the Complaint alleges advance knowledge of the employee’s unfitness or ratification pursuant to Civil Code section 3294, subdivision (b). The Complaint fails to do so. Separately, Plaintiff’s arguments in support of an award of punitive damages against the employee driver appear nowhere in the Complaint.

The Court initially finds that the Motion to Strike is MOOT as to Portion Nos. 3 and 4. Such paragraphs are pled in association with the second and third causes of action, which were sustained without leave to amend.

“Notwithstanding any other provision of law, a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant.” (Gov’t. Code, § 818.)

As to Portion Nos. 1, 2, and 5, the Court finds that such allegations are improper to the extent that they are alleged against Defendant pursuant to Government Code section 818. In light of this provision, the Court need not reach the applicability Civil Code section 3294, subdivision (b) [regarding punitive damages based on vicarious liability of an employer]. The

Court does not opine on whether the Complaint alleges sufficient facts to support a punitive damages award against the employee driver at this time.

Accordingly, the Motion to Strike
is GRANTED with 30 days leave to amend as to Portions 1, 2, and 5.